Orion draft 9/29/2026

Funding Agreement between
Persimmon Gulch Solar LLC and the Calcasieu Parish School Board

This is a funding agreement ("Agreement") between Persimmon Gulch Solar LLC ("Donor") and the Calcasieu Parish School Board ("Parish School Board"), a political subdivision of the State of Louisiana authorized to govern the public school system of Calcasieu Parish. This Agreement takes effect on [ ], 2026 ("Effective Date"), and is subject to the following terms and conditions.

Background

A. Donor is developing a solar energy generating facility in Calcasieu Parish, Louisiana, which is expected to have an aggregate nameplate generating capacity of up to approximately 1,000 megawatts (alternating current) ("MW_{AC}") (such facility, the "Project").

B. In the event the Project commences construction on or before December 31, 2030, Donor wishes to become a Partner in the Partners in Education Program of the Calcasieu School Board and to make the contributions described in Schedule A hereto.

Agreement

1. Contributions
Donor intends to make contributions to Parish School Board as described in the attached Schedule A in the event that the Project has commenced construction on or before December 31, 2030, subject to the terms and conditions herein. The Donor and Parish School Board understand that once a contribution is made, it is an irrevocable gift for the purpose described in Section 2.

2. Purpose
The Partners in Education Program of the Calcasieu School Board is designed to connect business and individuals with schools to help sustain improvement in public education by providing support for the well-being of local children and their families, for the general health of the community, and for the educational contribution to a vibrant economy. Donor intends for its contributions to be used to provide or improve educational facilities or opportunities for the widest possible range of members of the community in Ward 1 and Ward 6, with further preference for the 8 schools within those two Wards.

3. Distributions
Distributions shall be made consistent with the preferences described in Section 2.

4. Variance Power
Contributions by Donor are assets of Parish School Board. Nevertheless, funding preference will be given to the activities described in Section 2.

5. Administration

Contributions by Donor will be administered in accordance with the normal and customary policies of Parish School Board for the purpose described in Section 2.

6. Publicity

In the event the Project has commenced construction on or before December 31, 2030, Donor will be acknowledged as a Partner in the Partners in Education Program of the Calcasieu School Board.

7. Miscellaneous

(a) Successors and Assigns. This Agreement shall bind and inure to the benefit of each party and its respective successors and assigns. In the event that Donor transfers ownership of the Project to a third party such as a utility or other entity, the transferee will be bound by Donor's obligations hereunder and Persimmon Gulch Solar LLC will be released from such obligations.

(b) Entire Agreement. This Agreement constitutes the entire agreement and understanding between the parties and replaces in its entirely any prior discussions, negotiations, agreements or other arrangements in relation to its subject matter. No amendment or modification of this Agreement shall be valid or binding unless it is in a writing signed by authorized representatives of both parties.

(c) Term. In the event that the Project has commenced construction on or before December 31, 2030, then the term of this Agreement will end at the end of the Project's operating life.

(d) Satisfaction of Obligations. Contributions by Donor are not intended to nor shall they satisfy any obligations of Donor to the Parish School Board, Parish of Calcasieu, State of Louisiana, or any other public taxing authority.

[*Signature page follows*]

Persimmon Gulch Solar LLC

By: _____ Date: _____
Name:
Title:

Calcasieu Parish School Board

By: _____ Date: _____
Name:
Title:

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Schedule A - Contributions

- In the event that the Project has commenced construction on or before December 31, 2030, then Donor intends to make the following contributions to Parish School Board:
    - Within sixty (60) days after the Start of Construction, Donor intends to make a contribution to Parish School Board equal to $200,000 to the extent that the aggregate generating capacity of the solar energy generating facility being constructed is 1,000 MW_{AC}. For this purpose, "Start of Construction" means the installation of the first solar panel by Donor in Calcasieu Parish. For example, if the Start of Construction occurs for a Project with an aggregate generating capacity of 500 MW_{AC}, Donor intends to make a contribution to Parish School Board equal to $150,000.
    - During the operating life of the Project, starting not more than sixty (60) days after the date the Project begins commercial operations ("First Payment Date") and annually thereafter not more than sixty (60) days after each anniversary of the First Payment Date, Donor intends to make the following annual contributions to Parish School Board, *subject however* to the last sentence in this Schedule A:
        - $50,000, *plus* an additional $50,000 per 250 MW_{AC} of the Project's aggregate generating capacity which is operating on the First Payment Date or the applicable anniversary thereof, such amount (a) not to exceed $150,000 per year in aggregate, and (b) to increase by thirty percent (30%) on every 10th anniversary of the First Payment Date.
- Donor shall have no obligation to make any annual contribution if the Project is not energized and operational.